

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400140	BELLO VS RIVERSIDE COMMUNITY HOSPITAL	MOTION TO COMPEL DEPOSITIONS OF PLAINTIFF JUDY BELLO AND WITNESS/DAUGHTER KIM AUSTIN

Tentative Ruling: Defendant Riverside Healthcare System's UNOPPOSED Motion to Compel Deposition of Plaintiff and Plaintiff's Daughter is granted. Plaintiff is ordered to comply with this ruling within 30 days.

Sanctions is awarded AGAINST Plaintiff in reasonable reduced amount of \$560 (2 hours plus filing fee), payable within 30 days.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. VS MIMMS	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Def, Canyon Lake Property Owners Association's Demurrer to the 2nd Cause of Action is sustained with leave to amend within 20 days; as to the 3rd Cause of Action, it is overruled.

Court treats the demurrer as a motion to strike, which is granted as to paragraph 52 in 3rd cause of action of the SAC, but denied as moot as to the 2nd cause of action in light of the demurrer to that cause of action being sustained.

CAUSE OF ACTION FOR NEGLIGENT ENTRUSTMENT

"One who supplies directly or through a third person a chattel for the use of another whom the supplier knows or has reason to know to be likely because of his youth, inexperience, or otherwise, to use it in a manner involving unreasonable risk of physical harm to himself and others whom the supplier should expect to share in or be endangered by its use, is subject to liability for physical harm resulting to them." (Rest.2d of Torts, § 390; see also § 308.) In other words, negligent entrustment is a negligence theory that holds the entrustor liable for harm to a third party caused when they provide a dangerous instrumentality, such as a vehicle, firearm, or heavy equipment, to an incompetent entrustee, who is unfit to use it safely. Liability arises not from "the relationship of the parties, but from the act of entrustment" of the instrumentality, "with permission to operate the same." (*Garza v. Tesla, Inc.* 2025 Cal.Super.LEXIS 24731 *7.) "It must be noted that the common law doctrine of negligent entrustment can arise in many factual contexts, as well as employment." (*Jen-Weld, Inc. v. Sup. Ct.* (2005) 131 Cal.App.4th 853, 862.) Typically, this cause of action is applied to the entrustment of motor vehicles.

The elements of negligent entrustment are: 1) the entrustee was negligent in operating the vehicle; 2) defendant was an owner of the vehicle operated by the entrustee; 3)